

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Damien Quintyne	Team: Squad #5	CCRB Case #: 201508990	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/21/2015 1:47 PM	Location of Incident: Flatbush Avenue and Fenimore Street	Precinct: 71	18 Mo. SOL 4/21/2017	EO SOL 4/21/2017	
Date/Time CV Reported Wed, 10/21/2015 2:06 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/21/2015 2:06 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Lazo Lluca	22410	943493	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Leon Dinham	14174	952688	071 PCT
2. POM Leonardo Montielbarrera	22653	953131	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Lazo Lluca	Abuse: PO Lazo Lluca refused to provide his name and shield number to § 87(2)(b)	
B.POM Lazo Lluca	Discourtesy: PO Lazo Lluca spoke discourteously to § 87(2)(b)	

Case Summary

At approximately 1:47 PM on October 21, 2015, § 87(2)(b) left his home located at § 87(2)(b) in Brooklyn. § 87(2)(b) was alone and walked towards a deli on the corner of Fenimore Street and Flatbush Avenue to purchase a sandwich. As he was walking to the deli, § 87(2)(b) observed an unmarked gray Ford Fusion in the street. At this point, § 87(2)(b) began recording the incident on his cellphone. When § 87(2)(b) arrived at the deli he went inside and ordered his sandwich. While § 87(2)(b) was waiting inside the deli for his sandwich to be made, he observed the officers in the vehicle parked outside the deli. § 87(2)(b) exited the deli, and spoke with PO Lazo Lluka who was driving the unmarked vehicle with PO Leon Dinham sitting in the passenger's seat, and PO Leonardo Montiel-Barrera sitting in the rear passenger's seat behind PO Lluka. All three officers were assigned to the 71st Precinct. PO Lluka called out § 87(2)(b)'s name, and § 87(2)(b) approached the unmarked vehicle and asked PO Lluka for his name and badge number. § 87(2)(b) alleged that PO Lluka refused to provide his name and badge number (**Allegation A**).

§ 87(2)(b) alleged that PO Lluka pulled out his cellphone and he suspected that he may have intended to record him as well. § 87(2)(b) alleged that PO Lluka told him, "Oh, you're trying to be a smart ass. You're trying I can do the same shit too." (**Allegation B**) § 87(2)(b) told PO Lluka that he was going to file a complaint with the CCRB and IAB. PO Lluka allegedly told § 87(2)(b) that he did not know "what the fuck" he was talking about, and that § 87(2)(b) was a "moron" (**within Allegation B**).

§ 87(2)(b) recorded a portion of the incident on his cellphone. The relevant video footage is embedded below.



201508990_20151203_0947_DM.mp4

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- Mediation was offered to § 87(2)(b) but he rejected it.
- At the time of his interview, § 87(2)(b) stated that his mother was thinking about hiring an attorney to file a lawsuit against members of the NYPD. On December 4, 2015, a Notice of Claim search was requested from the Comptroller's office, and will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- PO Lazo Lluka has been a member of the NYPD for 8 years. PO Lluka has one prior CCRB complaint with no substantiated allegations. § 87(2)(g)
[REDACTED]
- § 87(2)(b)
[REDACTED]

Potential Issues

The discourtesy allegations were not captured on video.

Findings and Recommendations

Allegation A- Abuse of Authority: PO Lazo Lluka refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(b) called the CCRB and provided a telephone statement on October 21, 2015. § 87(2)(b) provided a sworn statement at the CCRB on October 27, 2015. PO Lluka was interviewed on November 10, 2015, along with PO Dinham on November 18, 2015, and PO Montiel-Barrera on November 25, 2015.

It is undisputed that as he was walking to the deli, § 87(2)(b) observed an unmarked gray Ford Fusion traveling parallel to him, towards the same intersection. § 87(2)(b) recorded the incident on his cellphone. When § 87(2)(b) arrived at the deli he went inside and ordered his sandwich. He exited the deli and had observed that the unmarked vehicle stopped at a red light. § 87(2)(b) said to PO Lluka “Hello, how you doing. Look he’s enticing me, he’s enticing me. We can do this all day, it doesn’t matter to me. You done taking pictures, I’m not.” § 87(2)(b) alleged that PO Lluka pulled out his cellphone and believed he was recording him as well. PO Lluka then began to call out § 87(2)(b)’s name, and § 87(2)(b) approached the unmarked vehicle and asked PO Lluka for his name and badge number.

§ 87(2)(g)

Allegation B -Discourtesy: PO Lazo Lluka spoke discourteously to § 87(2)(b)

In his initial complaint, § 87(2)(b) alleged that when PO Lluka observed § 87(2)(b) recording the unmarked vehicle, he stated “Oh you’re trying to be a smart ass. You’re trying I can do the same shit too.”

In his sworn statement, § 87(2)(b) did not note any specific comments by PO Lluka regarding his recording. He did however mention his allegation that PO Lluka took out his cell phone and pointed it at him.

The video appears to show § 87(2)(b) recording the unmarked vehicle. As § 87(2)(b) is recording, PO Lluka is shown holding a bright red or pink object in his hand that appears to be a cellphone. He is then heard saying, “Alright § 87(2)(b)”. The video footage did not show any of the discourtesies that § 87(2)(b) alleged to have happened during this part of their interaction.

In his initial complaint, § 87(2)(b) alleged that when he told PO Lluka that he was going to call the CCRB. PO Lluka told him, “So, I don’t care. That shit is not going to do nothing to me. That shit is going to make me have a day off. I’m going to go to the city, have a nice lunch, and lie about everything you are going to tell them.”

In his sworn statement, § 87(2)(b) alleged that when he said he was going to file a complaint PO Lluka told him he did not know “what the fuck he was talking about,” and all filing a complaint would do is make him have a day off, enjoy a nice lunch in the city, and that he would tell the CCRB that everything § 87(2)(b) said were lies. § 87(2)(b) stated that this sequence occurred after he stopped recording.

At the end of the footage, § 87(2)(b) can be heard saying, “Don’t worry I’ve got your badge number...internal...” The video ended at this point. The video provided by § 87(2)(b) did not capture any additional footage of his interactions with officers after this point.

PO Lluca and PO Dinham both acknowledged that § 87(2)(b) said he was going to file a complaint. PO Lluca said he told § 87(2)(b) he could go ahead and do so. However, PO Lluca denied calling § 87(2)(b) a smart ass or a moron, or using the words shit or fuck, while speaking to § 87(2)(b). PO Dinham denied that PO Lluca made any discourteous responses towards § 87(2)(b).

§ 87(2)(g)

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date